

CHAPTER X.

Evidence.

The cause being at issue, each party has two months' time to examine witnesses, and a material alteration, effected by the recent Orders, consists of the examination by each party of the opposite party, if it is desired. The time for taking evidence was formerly three months. The rule to produce witnesses, formerly in use, is abolished. Written Interrogatories are now dispensed with.

The following are the Orders :—

Immediately after the replication shall have been filed, each defendant may give notice of his intention to proceed to the examination of witnesses ; and the plaintiff may in like manner proceed to examine his witnesses, so soon as notice of the replication having been filed shall have been duly served on all the defendants who have filed an answer, or against whom a traversing note has been filed. Such notice must be in writing, and, beside specifying the time and place when and where, and before whom, such examination is to be proceeded with, must contain the name of each witness to be examined, his degree, and place of

1850.

LII.

Examination of
witnesses on
fourteen days'
notice.